

Article 1

Definitions

1.1 In this Agreement, "Mining Area" means the area described in Schedule 1 over which the Contractor holds mining rights granted by the relevant authority.

1.2 "Effective Date" means the date on which this Agreement is signed by both parties and becomes binding on them.

1.3 "Force Majeure" means any event beyond the reasonable control of a party, including natural disaster, civil unrest, or a change in applicable law materially affecting performance of this Agreement.

Article 2

Term

2.1 This Agreement shall commence on the Effective Date and continue for an initial term of five years unless earlier terminated in accordance with this Agreement.

2.3 Any extension agreed under Clause 2.2 shall be recorded in a written amendment signed by both parties before the expiry date.

Article 3

Payment

2.4 The Contractor shall submit an invoice for services rendered on a monthly basis, and payment shall be made within thirty days of receipt of a valid invoice.

Article 4

Notices and Miscellaneous

4.1 Any extension agreed under Clause 2.2 shall not affect the payment terms set out in Clause 3.1, which shall continue to apply throughout the extended term.

4.2 All notices under this Agreement shall be in writing and delivered to the addresses set out in the preamble to this Agreement.

Article 5

Insurance and Liability

5.1 The Contractor shall maintain public liability insurance and workers' compensation insurance for all personnel assigned to the Mining Area throughout the term of this Agreement, in amounts not less than those required by applicable law.

5.2 Each party shall be liable for losses arising from its own negligence in the performance of this Agreement, save where such loss arises from a written instruction of the other party later shown to be erroneous.

Article 6

Confidentiality

6.1 Each party shall keep confidential all information, technical data, and documents obtained in connection with this Agreement, and shall not disclose the same to any third party without the prior written consent of the other party, except as required by law or court order.

Article 7

Assignment

7.1 Neither party may assign its rights or obligations under this Agreement without the prior written consent of the other party, and any purported assignment in breach of this Clause shall be void.

Article 8

Governing Law and Dispute Resolution

8.1 This Agreement shall be governed by and construed in accordance with the laws of the Republic of Indonesia.

8.2 Any dispute arising out of or in connection with this Agreement that cannot be resolved amicably shall be referred to and finally resolved by arbitration administered by the Indonesian National Board of Arbitration.

Article 9

Amendment and Severability

9.1 No amendment to this Agreement shall be effective unless made in writing and signed by both parties.

9.2 If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Article 10

Counterparts

10.1 This Agreement is executed in two originals, each of which shall be deemed an original and both of which together shall constitute one and the same instrument.